

**Superior Court of the State of California
County of Orange**

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

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Date: August 21, 2026

2	Bansal vs. Sehgal 2023-01312162	Motion for Judgment on the Pleadings *****
3	Thomas Solar Energy vs. Orange County Sanitation District	1. Motion for Leave to Amend 2. Motion to Strike Complaint 3. Order to Show Cause

	2023-01337224	Request for Judicial Notice Defendant Orange County Sanitation District's Request for Judicial Notice is GRANTED. (Evid. Code §452, subds. (c); see also <i>Kalnoki v. First American Trustee Servicing Solutions, LLC</i> (2017) 8 Cal.App.5th 23, 37 [taking judicial notice of the records of the California Secretary of State under Evid. Code, § 452, subds. (c), (h)]; <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1286-1287 [taking judicial notice of a certificate of filing and suspension from the secretary of state relating to the corporate status of an entity].) The Court takes judicial notice of the fact that Plaintiff Thomas Solar Energy's powers, rights, and privileges have been suspended by the Franchise Tax Board since December 2, 2024. Motion to Strike Defendant Orange County Sanitation District's Motion to Strike Plaintiff Thomas Solar Energy's First Amended Complaint is GRANTED. (Code Civ. Proc. §§ 435, 436; Rev. & Tax. Code § 23301; Corp. Code § 2205; <i>Casiopea Bovet, LLC v. Chiang</i> (2017) 12 Cal.App.5th 656, 662, citation omitted ["A corporation that has had its powers suspended 'lacks the legal capacity to prosecute or defend a civil action during its suspension.' . . . Nor, during the period of suspension, may the corporation prosecute or defend an action, seek a writ of mandate, appeal from an adverse judgment, or renew a judgment obtained before suspension."].) Code Civ. Proc. § 436 provides as follows: The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws
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		of this state, a court rule, or an order of the court. "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437.) Since Plaintiff Thomas Solar Energy lacks the capacity to prosecute this action due to the FTB suspension, the First Amended Complaint is not drawn or filed in conformity with the laws of this state and is therefore subject to being stricken. Motion for Leave to Amend Answer Defendant Orange County Sanitation District's Motion for Leave to File an Amended Answer is DENIED without prejudice as MOOT in light of the foregoing ruling striking the First Amended Complaint. OSC RE: Legal Representation for Corporate Entity Plaintiff Thomas Solar Energy has not responded to the Order to Show Cause. In light of the foregoing ruling striking the First Amended Complaint on other grounds, the OSC is hereby vacated. An OSC re: Dismissal is set for September 11, 2026 at 9:30 AM in this department. Moving Party shall provide notice.
4	Saadeh vs. Bdair 2022-01248722	Motion for Reconsideration Plaintiff Belal Saadeh's motion for correction and clarification or alternatively for reconsideration is GRANTED, as follows. As requested, the Court on its motion reconsiders its 5/29/26 ruling on defendant Mohamad Bdair's motion to compel further responses to his second set of requests for

	production, Nos. 12 and 13, and also corrects a typographical error therein. (See Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830, 840 [court’s inherent authority to reconsider interim ruling]; Le Francois v. Goel (2005) 35 Cal.4th 1094, 1105-1108 [same]; In re Marriage of Barthold (2008) 158 Cal.App.4th 1301, 1308 [court may “correct an order that [it] [has] come to believe was erroneous”]; see also Estate of Eckstrom (1960) 54 Cal.2d 540, 544 [court may correct clerical error].) The 5/29/26 ruling describes request for production (RFP) No. 12 as seeking “documents evidencing tax-related damages,” when it seeks only tax returns. (Jammal Decl. at Ex. A.) The 5/29/26 ruling also orders plaintiff to provide a further response to RFP No. 12, despite acknowledging that plaintiff has substantiated his objection to this request based on the tax return privilege, and while also providing that “Plaintiff is not ordered to produce his tax returns.” (Id. at Ex. E [5/29/26 minute order]; see ROA No. 86 [same].) Finally, the 5/29/26 refers to the discovery at issue as “Set One,” when it actually concerns “Set Two.” (See id. at Exs. B, E.) Having reconsidered the underlying motion to compel further responses to second set of requests for production (Jammal Decl. at Ex. B), the Court ORDERS the prior 5/29/26 ruling on that motion VACATED—specifically, that portion of the 5/29/26 minute order from where it reads, “LATER THAT SAME DAY,” through and including the sentence that reads, “Plaintiff’s request for monetary sanctions is DENIED”—and now issues the following ruling on that motion: Upon reconsideration, defendants Mohamed Bdair’s motion to compel plaintiff Belal Saadeh’s further responses to his second set of requests for production of documents is
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		GRANTED IN PART and DENIED IN PART. (Code Civ. Proc. § 2031.310.) As part of his damages, Plaintiff alleges Defendants' conduct resulted in inaccurate tax filings and tax penalties. (FAC ¶¶ 25–28, 91.) Moreover, in response to Form Interrogatory No. 8.1, Plaintiff was asked whether he attributed any loss of income or earning capacity to the incident. Plaintiff responded: "Yes, loss of profits and excess tax liability resulting from the business operations of MB Home Linen & More, the company usurped by Defendants." Defendants served document demands seeking evidence of Plaintiff's tax damages. Request for Production No. 12 seeks "all tax returns evidencing the tax related damages [plaintiff] allegedly sustained." Request for Production No. 13 seeks correspondence with any tax preparers or professionals relating to the alleged tax damages. Plaintiff objected to the production of such documents on the grounds of the attorney-client privilege, work product, premature expert discovery, relevant, privacy, and tax-return privilege, and produced no documents. "Tax returns are privileged from disclosure. The tax return privilege 'is not absolute' and 'will not be upheld when (1) the circumstances indicate an intentional waiver of the privilege; (2) the gravamen of the lawsuit is inconsistent with the privilege; or (3) a public policy greater than that of the confidentiality of tax returns is involved.'" (Strawn v. Morris, Polich & Purdy, LLP (2019) 30 Cal.App.5th 1087, 1098 [cleaned-up].) Defendants seek to invoke the second of the above exceptions. In Wilson v. Superior Court (1976) 63 Cal.App.3d 825 (Wilson), the Plaintiff brought suit against accountants whom she alleged had "negligently and improperly advised her on the tax consequences of a sale of real property," leading to her damages. (Id. at 827.) The Court in Wilson explained: "By her complaint, plaintiff has placed in issue the existence and
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	the content of her tax returns and the tax consequences of the computations thereon. The gravamen of her lawsuit is so inconsistent with the continued assertion of the taxpayer's privilege as to compel the conclusion that the privilege has in fact been waived." (Id. at 830.) "To permit plaintiff to produce evidence of the contents of those returns...while successfully resisting their disclosure on grounds of privilege would be manifestly unfair to defendants. Accordingly, plaintiff can either maintain her lawsuit or the confidentiality of her returns, but not both." (Ibid.) Unlike Wilson, this action concerns a business dispute involving fraud and breach of an agreement. However, as part of his damages Plaintiff alleges Defendants' conduct resulted in inaccurate tax filings and tax penalties. While the Court agrees Plaintiff's tax-related damages are relevant to Plaintiff's claims, they are not the "gravamen" of his lawsuit. Therefore, Plaintiff has not waived the tax return privilege at this time. But the implication of the tax return privilege does not render other documents related to Plaintiff's tax related damages immune from discovery. "The fact that financial records are difficult to obtain or that a tax return would be helpful, enlightening or the most efficient way to establish financial worth is not enough." (Weingarten v. Superior Court (2002) 102 Cal.App.4th 268, 276.) Accordingly, the motion is GRANTED as to request for production No. 13 only, as follows. Plaintiff is ORDERED to provide within 10 days: (1) A further verified response to request for production No. 13, as hereby limited in scope to the years 2018-2020; and (2) To the extent a privilege is claimed, Plaintiff is to produce a privilege log, reasonably identifying the document (date, author, recipient, subject matter) and the claimed privilege.
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		At this time, Plaintiff is not ordered to produce his tax returns. However, the Court reserves the right to reconsider the issue if additional facts are discovered which make the tax returns necessary to substantiate Plaintiff's claim of tax-related damages. Plaintiff's request for monetary sanctions is DENIED. Plaintiff shall give notice.
6	Sandoval vs. Lollicup USA Inc. 2025-01475248	1. Motion for Relief from Waiver of Objections 2. Motion to Compel Deposition (Oral or Written) Motion to Compel Further Answers and Production at Deposition Defendant Lollicup USA Inc.'s motion to compel further answers and production at deposition is GRANTED IN PART and DENIED IN PART, as follows. (See Code Civ. Proc., § 2025.480.) On the resumption of the deposition, plaintiff Michael Sandoval is ORDERED to answer without objection the following two questions: (1) Whether plaintiff has incurred any legal expenses in filing this lawsuit. (See Def. Sep. Stmt. at p. 2; Adams Decl. ¶ 7, Ex. C [Pl. Depo. 25:8-23, 47:6-13].) (2) Whether plaintiff has received any money from the lawsuits he has filed as part of his advocacy work on behalf of the civil rights of visually-impaired persons. (See Def. Sep. Stmt. at p. 3; Adams Decl. ¶ 7, Ex. C [Pl. Depo. 29:24-30:5]; see also Compl. ¶ 15.) The motion is otherwise DENIED. With respect to the remaining question at issue (whether plaintiff has any documents showing he could not access the menu besides the screenshot he produced), plaintiff has already

		answered it. Plaintiff effectively answered “yes” by adopting his attorney’s response. (See Def. Sep. Stmt. p. 1; Adams Decl. ¶ 7, Ex. C [Pl. Depo. 42:16-43:3].) As for the further production of documents, defendant has failed to identify which specific demand(s) in the deposition notice are at issue here and has further failed to provide a separate statement with respect to any such demand(s). (Cal. Rules of Court, rule 3.1345(a)(5), (c) [separate statement requirements]; Mills v. U.S. Bank (2008) 166 Cal.App.4th 871, 892-893 [a trial court is “well within its discretion” to deny a motion to compel discovery for failure to comply with the separate statement requirement]; see also Golf & Tennis Pro Shop, Inc. v. Superior Court (2022) 84 Cal.App.5th 127, 137-138 [notice of motion that fails, inter alia, to identify the specific discovery requests at issue is insufficient to give notice]; Def. Sep. Stmt., in passim [only addressing questions].) Motion for Relief from Waiver of Objections Plaintiff Michael Sandoval’s motion for relief from waiver of objections to defendant Lollicup USA Inc.’s second set of requests for production is GRANTED. (Code Civ. Proc., § 2031.300, subd. (a); see New Albertsons, Inc. v. Superior Court (2008) 168 Cal.App.4th 1403, 1418-1421 [“mistake, inadvertence, or excusable neglect”; doubts resolved in favor of party seeking relief].) Plaintiff has served a verified response to defendant’s second set of requests for production that is in substantial compliance with Code of Civil Procedure sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280. (See Code Civ. Proc., § 2031.300, subd. (a)(1); St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 779-780, 782 [responses must be evaluated as a collective whole; actual compliance not required where the response is facially a good-faith effort to respond to the requests in a manner that is substantially code-compliant]; see also Katayama v. Continental
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		Investment Group (2024) 105 Cal.App.5th 898, 909-910 [flexibility in court discretion when adjudicating “substantial compliance”]; see also Jankowski Decl. ¶ 8, Ex. D.) Plaintiff has also shown that his failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (See Zamora v. Clayborn Contracting Group, Inc. (2002) 28 Cal.4th 249, 258 [mistake, inadvertence, or neglect excusable when a reasonably prudent person might have made the same error under the same or similar circumstances]; Comunidad en Accion v. Los Angeles City Council (2013) 219 Cal.App.4th 1116, 1135 [generally, calendaring errors are considered the “result of mistake, inadvertence, or excusable neglect” if such an incident was an “isolated mistake” rather than “a series of errors resulting from disorganization”]; see also Jankowski Decl. ¶¶ 2-7.) Defendant shall give notice of all of the above.
8	Bednar vs. Los Alamitos Racing Association 2021-01224855	Motion for Summary Judgment and/or Adjudication Defendants Los Alamitos Racing Association (“LARA”) and Edward C. Allred’s Motion for Summary Judgment is DENIED. Defendants LARA and Edward C. Allred’s Motion for Summary Adjudication is DENIED as to Issues 1, 2, 4, and 5 and GRANTED as to Issues 3 and 6. Legal Standard for Motion for Summary Judgment A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact”

		(Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (Id. at 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc. ("CCP"), § 437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 381–82 [pleadings serve as the outer measure of materiality in a summary judgment motion]; 580 Folsom Associates v. Prometheus Development Co. (1990) 223 Cal.App.3d 1, 18–19 [respondent only required to defeat allegations reasonably contained in the complaint].) A cause of action "cannot be established" if the undisputed facts presented by the defendant prove the contrary of the plaintiff's allegations as a matter of law. (Brantley v. Pisaro(1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action "cannot be established" by submitting evidence—such as discovery admissions and responses—that the plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (Aguilar v. Atlantic Richfield Co. (1995) 25 Cal.4th at 854-55 Once the moving party meets that burden, the burden shifts to the party opposing MSJ to show, by reference to specific facts, the existence of a triable issue as to that affirmative defense or cause of action. (Id.; Villacres v. ABM Industries, Inc. (2010) 189 Cal.App 4th 562, 575.) To meet this burden, the opposing party must present substantial and admissible evidence creating a triable issue. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (Doe v. Salesian Society (2008) 159 Cal.App.4th 474, 481; Bushling v. Fremont
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		Med. Center (2004) 117 Cal.App.4th 493, 510.) The moving party's papers are to be strictly construed, while the opposing party's papers are to be liberally construed. (Committee to Save Beverly Highland Homes Ass'n v. Beverly Highland (2001) 92 Cal.App.4th 1247, 1260.) ISSUE 1: Plaintiff's action against Dr. Allred is barred by the exclusive remedy statute of the Workers' Compensation Act. Moving Defendants fail to meet their initial burden as to this issue. Namely, Moving Defendants fail to establish that Plaintiff is an employee of Defendant Allred. Defendant Allred's showing consists of pointing to regulations that require him to maintain workers compensation insurance. (See SSUMF Nos. 100-109.) Accordingly, the motion is DENIED as to this issue. ISSUE 2: Plaintiff's action against Dr. Allred is barred by the Privette Doctrine. The Privette doctrine bars employees of independent contractors from recovering damages from the hirer of the contractor for workplace injuries. (SeaBright Ins. Co. v. US Airways, Inc. (2011) 52 Cal.4th 590, 594; Privette v. Superior Court (1993) 5 Cal.4th 689.) The rationale is twofold. First, because workers' compensation insurance generally provides the exclusive remedy for employees who are injured on the job, allowing the employee to recover from the contractor's hirer, who did not cause the injury, would unfairly subject the hirer to greater liability than that faced by the contractor who was negligent. (Hooker v. Department of Transportation (2002) 27 Cal.4th 198, 204.) Second, "[b]y hiring an independent contractor, the hirer implicitly delegates to the contractor any tort law duty it owes to the contractor's employees to ensure the safety of the specific workplace that is the subject of the contract." (SeaBright, at p. 594, italics added, italics omitted.)
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		A defendant can meet its initial burden on summary judgment by establishing that the Privette doctrine applies. (Degala v. John Stewart Co. (2023) 88 Cal.App.5th 576, 583 [moving defendant meets its initial burden on summary judgment by establishing applicability of Privette doctrine].) Upon making a showing that it is applicable, the burden shifts to the party opposing summary judgment to establish a triable issue of fact as to the existence of an exception to the Privette doctrine. (Alvarez v. Seaside Transportation Services LLC (2017) 13 Cal.App.5th 635, 644.) Moving Defendant meets its initial burden to show that the Privette doctrine applies by showing that Defendant engaged James Glenn as an independent contractor to train Peek it Up. (SSUMF Nos. 89-90.) Plaintiff has met his shifted burden to show a triable issue of material fact as to whether the Privette doctrine applies. There are two circumstances in which Privette does not apply, and an injured employee of an independent contractor may recover in tort from the party which hired that independent contractor. The first was set forth in Hooker v. Dept. of Transportation (2002) 27 Cal.4th 198 and is based on the concept of negligent exercise of retained control. "[A] hirer of an independent contractor is not liable to an employee of the contractor merely because the hirer retained control over safety conditions at a worksite, but ... a hirer is liable to an employee of a contractor insofar as a hirer's exercise of retained control affirmatively contributed to the employee's injuries." (Hooker, 27 Cal.4th at 202.) "The [Hooker] court reasoned that imposing tort liability where the hirer's exercise of retained control affirmatively contributed to the injury was consistent with Privette and its progeny "because the liability of the hirer in such a case is not ""in essence "vicarious" or "derivative" in the sense that it derives from
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		the “act or omission” of the hired contractor.’ ” ’ [Citation.] To the contrary, the liability of the hirer in such a case is direct in a much stronger sense of that term.” (Millard v. Biosources, Inc. (2007) 156 Cal.App.4th 1338, 1348.) (Emphasis in original.) “Affirmative contribution occurs where a general contractor is actively involved in, or asserts control over, the manner of performance of the contracted work. [Citation.] Such an assertion of control occurs, for example, when the principal employer directs that the contracted work be done by use of a certain mode or otherwise interferes with the means and methods by which the work is to be accomplished. [Citation.] [Citation.]” (Id.) (Emphasis in original; internal quotations omitted. The second Privette exception was discussed in Kinsman v. Unocal Corp. (2005) 37 Cal.4th 659 and sets forth the limited circumstances in which the hirer of an independent contractor can be liable to an employee of that contractor for hazardous conditions of its property. “[A] landowner that hires an independent contractor may be liable to the contractor’s employee if the following conditions are present: the landowner knew, or should have known, of a latent or concealed preexisting hazardous condition on its property, the contractor did not know and could not have reasonably discovered this hazardous condition, and the landowner failed to warn the contractor about this condition.” (Id. at 664, fn. 3.) Plaintiff has made a sufficient showing to implicate the Hooker exception. Plaintiff has shown that Defendant Allred had taken affirmative steps to retain control over matters concerning the monitoring of the health of horses used in races at the track prior to the race, that Allred failed to appropriately monitor the health of the horses, that Allred permitted Peek it Up to be cleared for racing without taking appropriate steps to diagnose chronic bilateral carpal chip fractures, and that Allred cut corners in the assessment of racehorse health to ensure a
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		steady supply of horses available to participate in races on the track Allred owns. (See Plaintiff's response to SSUMF No. 125; see also Plaintiff's AUMF Nos. 8-20, 79-80.) ISSUE 3: Defendant Los Alamitos Racing Association ("LARA") has no liability in this action. Defendant LARA has met its initial burden by showing that the race where Plaintiff's injury occurred was not conducted under LARA's license and that LARA had no other involvement in the race where the injury occurred. (See SSUMF Nos. 112-115; 119-120.) Plaintiff fails to raise a triable issue of material fact. Plaintiff points to nothing more than the fact that LARA and LAQHRA have the same ownership and that the ownership of Defendant Allred's various entities was "a very complex situation". This is not sufficient to establish alter ego liability on the part of Defendant LARA for the activities of LAQHRA. There is no evidence that shows LARA exerted control over LAQHRA in the race where Plaintiff's injuries took place. The motion is GRANTED as to this issue. ISSUE 4: Defendants Dr. Allred and Mrs. Cathleen Monji-Allred cannot be found personally liable simply based on their status as officers of the respective corporate Defendants. Defendant argues summary adjudication is warranted because Defendant Allred should not be held personally liable by virtue of his being an officer of the organizational defendants. "The legal fiction of the corporation as an independent entity is partly intended to insulate corporate officers from personal liability for corporate contracts ... The corporate fiction was never intended to insulate officers from liability for their own tortious conduct." (Michaelis v. Benavides (1998) 61 Cal.App.4th 681, 688.) Plaintiff has shown that Defendant Allred's tortious conduct is the basis for naming Defendant Allred in his negligence cause of action. (See, e.g. Plaintiff's AUMF Nos. 8-20, 79-80.) Specifically, Plaintiff has sufficiently raised a
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		triable issue of fact as to the level of responsibility Defendant Allred had for ensuring that horses that were raced at the Los Alamitos facility had their condition appropriately monitored. The Motion is DENIED as to this issue. ISSUE 5: Plaintiff assumed the risk of injury by participating in an inherently dangerous activity/sport. The motion is DENIED as to this issue. Defendants argue that the affirmative defense of primary assumption of the risk bars both causes of action. The primary assumption of risk doctrine "embodies the legal conclusion that there is 'no duty' on the part of the defendant to protect the plaintiff from a particular risk." (Knight v. Jewett (1992) 3 Cal.4th 315, 308.) A primary assumption of risk is a complete bar to a plaintiff's recovery. (Id. at 314-315.) Primary assumption of risk occurs when a plaintiff voluntarily participates in an activity involving certain inherent risks and encounters one of the inherent risks. Horseback riding has repeatedly been found to involve inherent risks. (See Parsons v. Crown Disposal Co. (1997) 15 Cal.4th 456; Levinson v. Owens (2009) 176 Cal.App.4th 1534, 1545 [horseback riding is a dangerous sporting activity].) However, primary assumption of the risk is not applicable where the defendant's acts or omissions unreasonably increase the risks inherent with the activity. (See Gregory v. Cott (2014) 59 Cal. 4th 996, 1010 [violent Alzheimer's patient and home caregiver]; Moor v. William Jessup University (2015) 243 Cal.App.4th 427, 434-35.) Plaintiff has raised a sufficient triable issue of fact as to whether Defendants acts or omissions unreasonably increased the danger of riding Peek it Up at the race by failing to appropriately monitor the horse's physical condition and failing to diagnose chronic bilateral carpal chip fractures. (See, e.g.
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	Plaintiff's response to SSUMF No. 135; see also, Plaintiff's AUMF Nos. 8-20, 79-80.) ISSUE 6: There is no evidence to support a viable claim of negligence or premises liability against the Defendants arising from any condition of the racetrack surface. The Motion is GRANTED as to this issue. Defendants have met the initial burden by showing that no defect in the condition or maintenance of the racetrack surface caused or contributed to the injury. (SSUMF Nos. 159-170.) In opposition, Plaintiff admits that he does not contend that the condition or maintenance of the track is a cause of Plaintiff's alleged injuries, but rather "Plaintiff's negligence and premises liability claims rest of Defendants' operation of the racecourse and handling of Peek-it-Up's undiagnosed condition..." (See, e.g. Plaintiff's Response to SSUMF No. 159.) Plaintiff's position that he need not establish a defect in the condition or maintenance of the premises to prevail on a cause of action for premises liability is not persuasive. Premises liability "is grounded in the possession of the premises and the attendant right to control and manage the premises" (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1159.) Plaintiff's theory of liability regarding negligent "use" of the property is nothing more than a restatement of his theory that Defendants were negligent in monitoring the health of the racehorses, which goes to Plaintiff's negligence cause of action. Since Plaintiff admits that he does not contend any defects in the premises caused or contributed to his injuries, summary adjudication of this issue is warranted. Moving Defendants shall provide notice of this ruling.
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9	Nano Banc vs. Shyam 2025-01504857	Motion to Compel Answers to Form Interrogatories Plaintiff Nano Banc’s motion to compel defendants Deba Shyam and Vibranium LLC to provide further responses to Form Interrogatories, Set One, is GRANTED. (Code Civ. Proc., 2030.300 [authorizing motion].) Defendant Deba Shyam shall provide full, complete, and verified further responses to plaintiff’s First Set of Form Interrogatories, Form Interrogatory Nos. 2.2, 2.5, 2.7, 2.8, 2.11, 15.1, 17.1, and 50.1-50.6, without objection, within 15 days of notice. Defendant Vibranium LLC shall provide full, complete, and verified further responses to plaintiff’s First Set of Form Interrogatories, Form Interrogatory Nos. 12.1, 15.1, 17.1, and 50.1-50.6, without objection, within 15 days of notice. The Court imposes sanctions in the amount of \$962.50 against defendant Deba Shyam, and \$962.50 against defendant Vibranium LLC (\$1,925.00 total). Sanctions are payable to counsel for moving party within 30 days of notice. Moving party shall give notice.
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